



Private and Confidential

"MODUS SUPER SERIES" Player Contract

MODUS Online Limited
4 Office Village
Forder Way
Cygnet Park
Hampton
Peterborough
Cambridgeshire

12th October 2025

Dear Sander Van Ockenburg-Zwaan,

THIS AGREEMENT IS IMPORTANT AND IS LEGALLY BINDING: YOU SHOULD CONSIDER TAKING INDEPENDENT LEGAL ADVICE BEFORE SIGNING.

This Agreement is made between: -

- (1) **MODUS ONLINE LIMITED**, a company registered in England (number 13062109) of 4 Office Village Forder Way, Hampton, Peterborough, England, PE7 8GX ("**MOL**")
- and
- (2) Sander van Ockenburg - Zwaan ("**the Player**")

These terms and conditions and the Schedules referred to below and attached together form the agreement and understanding between MOL and the Player governing the Player's participation in the series of prize-money professional darts competitions called the MODUS Super Series (formerly known as the "*MODUS Online Live League*").

1 Interpretation

For the purposes of this Agreement the words, acronyms, references, and phrases set out in the table below shall have the meanings provided for them.

ADRV	Anti-Doping Rule Violation as defined in the World Anti-Doping Code 2021 and enforced by the UKDA
Commencement Date	The date of this Agreement
Doping	The taking of medication or undergoing a medical procedure or other health treatment prohibited under the World Anti-Doping Agency's Prohibited List without holding a valid Therapeutic Use Exemption certificate: see also Schedule E
DRA	Darts Regulatory Authority

FEU Tax	The taxation scheme operated by the <i>Foreign Entertainers Unit</i> of HMRC by which a non-resident sportsperson is liable to pay tax at the basic rate applicable in the UK on prize-money won directly or indirectly from engagement in a sporting competition, collected directly from the party who pays the prize money but which may be reclaimed by the sportsperson from HMRC if eligible for a certificate issued by the FEU
Force Majeure	Circumstances beyond a party's reasonable control which cause that party to fail to perform its relevant obligation(s) under this Agreement (whether wholly or in part), which include but are not restricted to: war, acts of terrorism (whether threatened or executed), epidemic, pandemic and disease, strike action or lock-out, civil warfare or strife, flood or fire damage, acts of God, legal or regulatory enactment, government order, and international sanction preventing or affecting adversely the holding of the Tournament.
HMRC	His Majesty's Revenue and Customs
IPR	Intellectual Property Rights: collectively copyright and all related rights (such as moral and performers rights), commercial rights in the owner's likeness or digital image, name and/or performance name, rights in confidential information, know-how, trade secrets, trademarks, trade names, database rights, databases, domain names, business names and all similar rights of whatever nature wherever in the world arising
Promotional Material	Promotional advertising and marketing materials in any format and published by any medium or method of distribution or display in connection with or associated to the Tournament
Tournament	MODUS Super Series™, which is to be played in accordance with the tournament format set out in Schedule A
TUE	Therapeutic Use Exemption: see also Schedule E
UK	United Kingdom of Great Britain and Northern Ireland
UKDA	UK Anti-Doping: the national body responsible for supervising compliance with the World Anti-Doping Code 2021 (and any successor thereto) through implementation and management of the UK's National Anti-Doping Policy
Venue	MODUS Live Lounge, 19 London Road, North End, Portsmouth, Hampshire PO2 0BQ

2 Player as competitor

- 2.1 The Player will compete in this Tournament in his/her capacity as a self-employed professional darts player. Save as expressly provided otherwise, nothing contained in this Agreement shall in any way create any formal association, partnership, joint venture or the relationship of Principal and Agent or Employer and Employee between the Parties, nor be construed as evidencing the intention of the parties to create any such relationship.
- 2.2 The format for the Tournament will consist of a series of thirteen week-long league match play competitions, each leading to a Final featuring the top players of each league. The Tournament's rules and format are set out in Schedule A.

- 2.3 Each session of play shall be live-streamed over the Internet. In addition, should agreement be reached between MOL and a suitable television production company, the Tournament may be scheduled for broadcast by terrestrial or satellite transmission.

3. Term of Agreement and Schedules

- 3.1. This Agreement shall commence on the Commencement Date and continue until 23.59 (UK time) on 4 January 2026, unless otherwise terminated in accordance with the provisions of this Agreement, or if this Agreement is substituted in its entirety by the parties signing a new Agreement.
- 3.2. For the duration of this Agreement MOL, shall exercise its own discretion whether to add to, remove from or amend any of the following elements of the Tournament: -
- 3.2.1. The number of matches played in a session and the size of each league group, set out in Schedule A ("Tournament Format");
- 3.2.2. The number, categories, and cash amount of prizes to be won during the Tournament, set out in Schedule B ("Tournament Prizes");
- 3.2.3. Dress code of competitors, to include the format, number, size, and location of any sponsor logo patch on the shirt to be worn by the Player during matches of the Tournament, set out in Schedule C ("Player's Briefing");
- 3.2.4. Whether any guest of the Player may be granted admission to the Venue, including the total number of permitted guests attending any session of the Tournament;
- 3.2.5. The contents of Schedule D relating to Betting and Gambling; and
- 3.2.6. The contents of Schedule E regarding Anti-Doping and TUE certification.
- 3.3. Any material changes to the Tournament Format, Tournament Prizes, Player's Briefing, DRA and Anti-Doping rules shall be put into writing and delivered to the Player in the form of a revised Schedule bearing the date of amendment; whereupon the new Schedule shall take effect from the date of delivery and any prior Schedule shall have no further effect.
- 3.4. The Schedules form part of this Agreement and any reference to this Agreement includes the Schedules.

4 MOL's Obligations

- 4.1 MOL will take care to ensure that the Venue is a reasonably safe and secure environment for the Player and any permitted guest of the Player.
- 4.2 If the Player wins one or more of the Tournament Prizes, MOL shall pay the Tournament Prize amount by BACS transfer into a bank account previously nominated in writing to MOL by the Player within seventeen (17) days of the end of the relevant playing week.
- 4.3 If the Player is not a resident of the UK, MOL shall pay to the Player within seventeen (17) days of the end of the relevant playing week as follows:
- 4.3.1 by BACS transfer into a bank account nominated in writing to MOL by the Player the amount of the Tournament Prize amount less the following deductions: -
- (a) the sum of FEU tax payable directly by MOL to HMRC; and
- (b) the cost of the BACS transfer (currently £15 but subject to change); and
- 4.3.2 supply to the Player an appropriate FEU certificate for the Player's tax purposes.
- 4.4 MOL shall retain the right to exclude a Player from the Tournament summarily and without prior written notice or having to provide a written explanation at or immediately after the material time of communicating the exclusion. The Player may ask MOL to provide a written explanation of the reason for exclusion and MOL shall comply within seven working days following receipt of the Player's request.

5 Player Obligations

- 5.1 The Player hereby undertakes, represents and warrants to MOL that: -
- (a) the Player is entitled to enter into this Agreement and has the capacity and full authority to do so;
 - (b) the Player is not prohibited or restricted in any way from entering into this Agreement or performing this Agreement; and
 - (b) there are no other contracts, understandings or commitments (whether oral or otherwise) which would or might affect, prejudice or conflict (directly or indirectly) with the provisions of this Agreement.
- 5.2 The Player agrees to be available on each of the dates of the Tournament and for any prior training as required by MOL from time to time.
- 5.3 The Player shall not participate in or accept an invitation to compete in any other live-streamed darts tournament or match for the duration of this Agreement **PROVIDED THAT** the Player may in writing seek the permission of MOL to do so whilst continuing to participate in the Tournament, such consent not to be unreasonably withheld by MOL. The Parties agree that any live-streamed darts match or tournament run by a competitor of MOL is likely to give rise to a conflict of commercial interests entitling MOL to withhold its consent and that MOL's decision in respect of any such Player request shall be final and binding.
- 5.4 The Player shall be ready, willing and available to participate as reasonably requested by MOL from time to time in media interviews, public relations exercises, promotional portraits or videos, new media activities and/or Tournament endorsements (together, an "Appearance"). Save as required by MOL from time to time, the Player shall not, without the prior written approval of MOL: -
- (a) post to any social media platform or submit to interview or make any other public statement or comment relating to the Tournament; nor
 - (b) comment, share or disclose any information concerning the Player's own matches or session, the matches of other players within one or more Groups, or the performance of any other player within the Tournament overall.
- 5.5 The Player's IPR remains vested in the Player notwithstanding the rights granted by the Player to MOL pursuant to this Agreement. In consideration for participating in the Tournament the Player grants to MOL an unlimited, irrevocable and royalty-free licence to use the Player's IPR in and for the purpose of producing and issuing Promotional Materials and in and for the purpose of the streaming and/or broadcasting of the Tournament (including advertising therefor) both live, as live and in edited recordings of whatever duration.
- 5.6 The Player agrees that any IPR that comes into existence as a result of or in the course of an Appearance or otherwise in connection with the Tournament (including but not limited to Promotional Materials, match footage, interviews and other authorised recordings) shall vest in and belong to MOL absolutely and the Player hereby assigns to MOL absolutely with full title guarantee any and all of its right, title and interest in and to such IPR.
- 5.7 The Player agrees that both the specific address and general location of the Venue is a trade secret forming part of MOL's IPR and constitutes information confidential to MOL which the Player promises not to publish or share by any method (including but not limited to Social Media post) without the prior written consent of MOL for a period of five calendar years starting with the Commencement Date or ending five calendar years after the termination of any extension or substitution of this Agreement, whichever is the later.
- 5.8 Neither the Player nor any person acting at the Player's direction shall take any photographs or record any video footage at the Venue.
- 5.9 The Player will be responsible for the following personal arrangements and expenses: -

- (a) travel to and from the Venue and any relevant parking charges;
 - (b) all accommodation and sundry costs and expenses (such as laundry); and
 - (b) all food, drink and any other subsistence required.
- 5.10 Both at the Venue and at any Appearance, the Player shall wear clothing that complies with the Dress Code, including a darts shirt displaying logo patches only in the positions specified in the Players Briefing set out in Schedule C.
- 5.11 The Player will compete and perform during the Tournament to the best of the Player's ability and shall provide all cooperation during any Attendance as reasonably requested by MOL from time to time.
- 5.12 At all times the Player shall: -
- (a) Abide by the Tournament format as set out in Schedule A and the Players Briefing as set out in Schedule C;
 - (b) Obey and comply with the DRA rules, including but not limited to the rules against match-fixing betting and corrupt practices (a summary of which is set out in Schedule D);
 - (c) Not bet or gamble on the result of any Tournament match (regardless of whether the Player is competing in that match or not) nor encourage, support advise or instruct any other person to do so whether for the proposed benefit of the Player or of any other person;
 - (d) Not compete whilst Doping or otherwise in contravention of an ADRV;
 - (e) Not use any words, take any action, make any omission or engage in any conduct which brings the Player, any other player in the Tournament, the game of darts, the Tournament itself, MOL or any of MOL's officers, employees or agents into disrepute; and
 - (f) If the Player is a witness to or made aware of any other player's breach of paragraphs (a) to (e) inclusive of this clause 5.12 report the same to the Player's Marshal as soon as reasonably practicable.
- 5.13 In furtherance of the Player's obligation under clause 5.12(c) above, upon request in writing from MOL, the Player will provide all necessary information and documentation regarding any personal betting accounts held or operated by the Player and whether in the Player's own name or under alias, so that MOL may monitor those accounts in advance of and during the Tournament for any suspicious betting activity.
- 5.14 The Player will be liable to summary exclusion from the Tournament on the following grounds: -
- (a) If the DRA announces that the Player is under investigation or has been declared in breach of the DRA regulations against Match-Fixing, Betting and other corrupt practices (a summary of which is set out in Schedule D);
 - (b) If MOL has reasonable grounds for suspecting that the Player has previously or is currently engaged in misconduct falling within the ambit of Schedule D, irrespective of whether the DRA is aware of any such allegation;
 - (c) If MOL has reasonable grounds for suspecting that the Player has previously committed or is currently committing an ADRV or otherwise engaged in Doping without a recognised TUE certificate (a summary of those rules as set out in Schedule E), irrespective of whether or not the UKDA is aware of any such allegation or whether any such allegation has been reported to the UKDA;
 - (d) If the Player has received a request for information or documentation under clause 5.13 and either fails to respond to the request or, notwithstanding the existence of betting accounts held by or under the control of the Player at the material time, fails or refuses to provide any information or documentation so requested;

- (e) If the Player witnesses or becomes aware that a fellow player has engaged in acts liable to summary exclusion under paragraphs (a) to (d) inclusive of this clause 5.14 and then either fails or refuses to report the same to the Players Marshal as soon as reasonably practicable thereafter.

6 Therapeutic Use Exemption

- 6.1 If the Player suffers from an illness or condition that requires the taking of medication or is undergoing any procedure which prohibited is by the UKDA, a TUE certificate may authorise the Player to use that substance or undergo that procedure whilst competing in the Tournament without invoking an ADRV or other consequence, including the termination of this Agreement.
- 6.2 A TUE certificate is an official medical document giving the Player permission to take the defined medication or undergo the specified procedure whilst competing in the Tournament without registering a Doping offence.
- 6.3 At all times, it shall be the Player's personal responsibility to determine whether a TUE certificate is required pursuant to the terms of this Agreement and if so to take the steps necessary to obtain one. A summary of the UKDA principles for the grant of a TUE certificate are set out in Schedule E, but it is the Player's sole responsibility to understand and comply with the UKDA rules and regulations.
- 6.4 It shall not be a defence to a breach of clause 5.12(d) or 5.14(c) of this Agreement for the Player to allege that a TUE certificate would have been granted had it been applied for in time to compete in the Tournament.

7 Player's Sponsor Logos

- 7.1 If the Player wishes to display a sponsor's logo patch on the Player's darts shirt during participation in the Tournament, the Player shall first seek the written consent of MOL and at the same time supply a spare patch or scan copy of the sponsor's logo for inspection.
- 7.2 MOL's consent to a Player's request under clause 7.1 shall not be unreasonably withheld **PROVIDED THAT** the display of such logo patch does not conflict with any sponsorship contract then or subsequently entered into by or benefitting MOL; and the question whether such a conflict arises shall be a matter entirely for the decision of MOL (acting reasonably).

8 Termination for Breach

- 8.1 A party may terminate this Agreement immediately if the other party: -
- (a) commits a breach of this Agreement that is not remedied (if capable of being remedied) within seven (7) days of written notice being received from the party alleging the breach;
 - (b) is declared insolvent, enters into any company Voluntary Arrangement or other composition with its creditors, has a Receiver appointed or an Administration Order made in respect of it or is unable to pay its debts within the meaning of section 123 of the Insolvency Act 1986; or
 - (c) ceases or threatens to cease carrying on business (or in the case of the Player, threatens to or withdraws from the Tournament).
- 8.2 Termination under this clause shall not affect, restrict or prejudice any rights which have accrued prior to the date of termination. Any provision of this Agreement that expressly or by implication is intended to continue in force on or after termination of this Agreement shall remain in full force and effect.

9 No-Fault Termination

- 9.1 Giving not less than five days' advance notice prior to the start of the Tournament, either party ("the Cancelling Party") may deliver a written notice ("Cancellation Notice") to the other party terminating this Agreement.

- 9.2 The effect upon this Agreement of the service of a Cancellation Notice is that the Cancelling Party is relieved of further performance of any services and obligations, save that cancellation shall not affect, restrict or prejudice any rights which have accrued prior to the date of termination. Any provision of this Agreement that expressly or by implication is intended to continue in force on or after termination of this Agreement shall remain in full force and effect.

10 Data Protection and Disclosure

- 10.1 The Player consents to MOL receiving and holding the Player's personal data as a Data Controller (as defined in the Data Protection Act 2018). There shall be no disclosure by MOL of the Player's personal confidential information – for example and without limitation: the Player's bank account, location of the Player's home address, number names and age of children, name of spouse/partner – unless the Player has given prior written consent with knowledge of the party to whom such disclosure is proposed or where MOL is required to disclose such information to the DRA or pursuant to applicable law, regulation, court order or requirement of any governmental or regulatory authority.
- 10.2 The Player consents to MOL sharing darts performance and linked data with third parties authorised by MOL for the purpose of preparing and publishing performance statistics required for the Tournament format, Tournament broadcast or streaming and the calculation of betting odds by licensed gaming and betting operators.

11 Force Majeure

- 11.1 A party affected by Force Majeure ("the Affected Party") shall not be held liable or deemed to be in breach of this Agreement for failure to perform its obligations if such failure results directly or indirectly from circumstances of Force Majeure and thereby is deemed beyond the Affected Party's reasonable control.
- 11.2 The Affected Party must continue to perform those of its obligations to the extent that they are unaffected by Force Majeure and must use all reasonable endeavours to overcome or mitigate the consequences of Force Majeure as soon as reasonably practicable.

12 General

- 12.1 No failure or delay by a party to exercise any right or remedy provided under this Agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.
- 12.2 A waiver of any right or remedy is only effective if given in writing and shall not be deemed a waiver of any subsequent right or remedy. A delay or failure to exercise, or the single or partial exercise of, any right or remedy shall not waive that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy.
- 12.3 This Agreement contains all of the terms and conditions agreed between the Parties regarding its subject matter and supersedes any prior agreement, arrangement or understanding between them.
- 12.4 If any clause or subclause of this Agreement is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable. If such modification is not possible, the relevant clause or subclause shall be deemed deleted. Any modification to or deletion of a clause or subclause by the operation of this clause 12.4 shall not affect the validity and enforceability of the rest of this Agreement.
- 12.5 This Agreement may be executed in any number of counterparts and by each party on separate counterparts. Each executed counterpart is to be treated as an original, but all counterparts together shall constitute one and the same Agreement.

- 12.6 No variation of this Agreement shall be effective unless it is in writing and signed by an authorised representative of each party.
- 12.7 Any notice required or authorised by this Agreement shall be in writing and sent to the other party by email or by registered post to the relevant email or postal address as advised from time to time by each party to the other.
- 12.8 This Agreement shall expire as set out in clause 3.1. Any provision of this Agreement that expressly or by implication is intended to continue in force on or after expiry of this Agreement shall remain in full force and effect.

13 Confidentiality

- 13.1 Each party shall ensure that the terms of this Agreement and all matters relating to the format, rules and prizemoney of the Tournament remain strictly confidential both during the Tournament and for a period of three years following expiry or termination of this Agreement, unless permission in writing to disclose the specified information is given by MOL to the Player.
- 13.2 Neither party shall make or release any statement, announcement or representation to any member of the public, the Press or Media regarding its involvement with the other (including any reference to this Agreement) unless such statement, announcement or representation has first been approved in writing by the other party.

14 Dispute Resolution

- 14.1 In the event of a breach of any term or condition of this Agreement, the innocent party shall inform the offending party of the breach by notice in writing.
- 14.2 If the breach is capable of remedy, within 7 days of receipt of the notice of breach a representative from both parties shall meet either in person or by virtual means and endeavour to agree upon the appropriate remedy for that breach.
- 14.3 If the breach is incapable of remedy, or if only one party concludes that the breach is remediable, either party shall notify the other party in writing that the dispute has not been resolved and may apply to the President or Deputy President of the Chartered Institute of Arbitrators to appoint a Mediator under the Civil Mediation Council (CMC) Fixed Fee Mediation Scheme [FFMS].
- 14.4 Mediation is an alternative to formal legal proceedings capable of providing a confidential, flexible and cost-effective method of resolving the dispute. The courts of England have strongly encouraged litigants to mediate their dispute without the need for a possibly lengthy and expensive trial of the facts. Should either party choose to reject Mediation altogether ("the Rejecting Party") and prefer to litigate the dispute in Court then the Rejecting Party will set out in writing the grounds for that decision so that the Court can understand the reasons for the Rejecting Party doing so.

15 Limitation of Liability

- 15.1 Subject to clause 15.2 below, neither party shall be liable to the other in contract, tort (including negligence) or for breach of statutory duty or in any other way for any economic losses arising under or in connection with this Agreement (including loss of revenue or anticipated revenue, profits, agreements or contracts, opportunity, business or anticipated savings) or loss of or damage to goodwill or reputation or any special or indirect or consequential losses in any case and whether or not such losses are within the contemplation of the parties at the date of this Agreement.
- 15.2 Nothing in this Agreement shall operate so as to limit the liability of one party to the other for fraud, or for personal injury or for death caused by its negligence or the negligence of its employees or any other liability that cannot be limited or excluded by law.

16 Assignment

MOL may at any time assign, mortgage, charge, subcontract, delegate, declare a trust over or deal in any other manner with any or all of its rights and obligations under this Agreement. The Player shall not assign, transfer, mortgage, charge, subcontract, delegate, declare a trust over or deal in any other manner with any of its rights and obligations under this Agreement.

17 Governing Law and Jurisdiction

This Agreement shall be governed by the laws of England and Wales; and, without prejudice to Clause 14 the parties shall submit exclusively to the jurisdiction of the Courts of England and Wales.

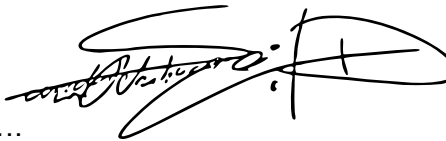
Please sign and return a copy of this Agreement to confirm that you and accept and agree to its terms.

Yours sincerely,

.....
Jason Thame
For and on behalf of MODUS Online Limited

I acknowledge receipt and agree and accept the terms and conditions of this Agreement

.....
[Sander Van Ockenburg-Zwaan]



Schedule B
Tournament Prizes

Grand Final Day:

Champion - £60,000

Runner up - £20,000

Semi Finals - £8,000

Quarter Finals - £4,000

Stage Two Knockout Groups:

2nd Place - £1,200

3rd Place - £900

4th Place - £800

Stage One Groups:

5th Place - £700

6th Place - £600

7th Place - £500